

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**COMPLAINANT'S RESPONSE TO RESPONDENTS' PETITION
FOR ENLARGEMENT OF TIME TO FILE EXCEPTIONS**

Complainant the Intermodal Motor Carriers Conference of the American Trucking Associations ("IMCC") respectfully opposes Respondents' petition for an enlargement of time to file exceptions to and appeal from the February 6, 2023 Initial Decision Partially Granting Summary Decision ("ID").

Respondents have not shown any "good cause" why they need fifty-two days to recycle their already-briefed arguments into a new format. 46 C.F.R. § 502.102(a). Respondents have briefed these issues, such as the Commission's jurisdiction and joinder, at least three times: first in a motion to dismiss (Doc. 13), second in a leave to appeal the denial of the motion to dismiss (Doc. 20), and third at the summary decision stage (Doc. 97, Doc. 101, Doc. 104, Doc. 112).

Respondents' citation to the size of the factual record also does not provide good cause; rather, it indicates that the parties already have analyzed the record before filing their respective motions for summary decision. That record is virtually irrelevant to the question of jurisdiction and other legal issues determined in the Initial Decision, since Judge Wirth based her determination on admitted facts, the positions espoused by Respondents and their experts, and the law. Moreover, Respondents' counsel are highly familiar with Commission practice, and Respondents themselves have ample resources to comply with the Commission's ordinary schedule under 46 C.F.R. § 502.318(a).

In addition, such a long extension would prejudice IMCC and the shipping public. As Judge Wirth found, the undisputed facts demonstrate that Respondents' conduct is unjust and unreasonable because it "restrains competition in the IEP market, as motor carriers are limited in their ability to select other chassis providers." ID at 42. These practices not only harm motor carriers and beneficial cargo owners who must pay overcharges for MH chassis, but they also constitute "harms to competition in the chassis market and harms to the efficiency of the transportation system[.]" *Id.* at 57. Without an Order otherwise, these harms will continue. Respondents' extension request not only delays relief for the shipping public, but would also risk the Commission's current schedule, which requires a Final Decision by September 13, 2023. *See* Doc. 129 (Notice of Extension of Time).

For these reasons, IMCC does not believe that any extension is necessary for Respondents to draft an appeal brief. Out of courtesy, IMCC informed Respondents that it

would not oppose a 7-day extension, for a total of 29 days, in exchange for an equal extension for IMCC's response to Respondents' exceptions.¹

CONCLUSION

IMCC respectfully requests that Respondents' petition be denied.

DATED: February 14, 2023

Respectfully submitted,

By: /s/ W. Stephen Cannon

W. Stephen Cannon

David D. Golden

Seth D. Greenstein

Richard O. Levine

Allison F. Sheedy

J. Wyatt Fore

Janice Johnson

CONSTANTINE CANNON LLP

1001 Pennsylvania Avenue, NW

Suite 1300 N

Washington, DC 20004

Phone: 202-204-3500

scannon@constantinecannon.com

Daniel Vitelli

CONSTANTINE CANNON LLP

335 Madison Avenue

New York, NY 10017

Phone: 212-350-2700

dvitelli@constantinecannon.com

Attorneys for Complainant

Intermodal Motor Carriers Conference of the

American Trucking Associations

¹ Thus, should the Commission grant any portion of Respondents' extension request, as a matter of fairness IMCC requests an equivalent extension in which to file its opposition.

CERTIFICATE OF SERVICE

I certify that, on February 14, 2023, a true and correct copy of the foregoing Response to Respondents' Petition for Enlargement of Time to File Exceptions was filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

Wayne R. Rohde
Christopher Raleigh
Mark Rabinowitz
Kathryn Sobotta
Cozen O'Connor
1200 Nineteenth Street, NW
Washington, D.C. 20036
wrohde@cozen.com
craleigh@cozen.com
mrabinowitz@cozen.com
ksobotta@cozen.com

Counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and Evergreen Line Joint Service Agreement, FMC No. 011982

Deana E. Rose
Manelli Selter PLLC
1725 I Street, NW, Suite 300
Washington, D.C. 20006
drose@mdslaw.com

Counsel for Yang Ming Marine Transport Corp.

Gerald A. Morrissey III
Christopher Nolan
Holland & Knight LLP
800 17th Street NW, Suite 1100
Washington, D.C. 20006
gerald.morrissey@hklaw.com
chris.noland@hklaw.com

Counsel for Hapag-Lloyd AG

DATED: February 14, 2023

/s/ J. Wyatt Fore

J. Wyatt Fore
CONSTANTINE CANNON LLP